

In the Court of Common Pleas
County of _____
_____ Judicial District



Commonwealth of Pennsylvania
v

Docket No: CP- - - -20

Petition for Expungement Pursuant to Pa.R.Crim.P. 790

AND NOW, the petitioner avers the following and requests that this petition for expungement pursuant to Pa.R.Crim.P. 790 be granted for the reasons set forth below.

PETITIONER INFORMATION						
Full Name:		DOB: 1991-04-17		Social Security Number:		
Address:		Alias(es):				
Apartment 4321-B						
PA						
CASE INFORMATION						
List name, address of the Judge of the Court of Common Pleas or Philadelphia Municipal Court who accepted the guilty plea or heard the case:						
Judge:			Address:			
Philadelphia Municipal Court or Court of Common Pleas Docket Number: 0123-45-2026-CR-900123.00-AB-CDE/2201			Offense Tracking Number (OTN):			
Name of Arresting Agency: Example Police Department			Date of Arrest: 2019-03-08		Date on Complaint: 2019-03-08	
List name and mailing address of the affiant as shown on the complaint, if available:						
Name of Affiant:			Address:			
List specific charges, as they appear on the charging document, to be expunged and the disposition of each charge (please attach additional sheet(s) of paper if necessary):						
PA Statute (Title)	Section	Subsection	Statute Description	Counts	Grade	Disposition
If the sentence imposed included a fine, costs or restitution, has the amount due been paid?				☐ Yes ☐ No		
List the reason(s) for the expungement (please attach additional sheet(s) of paper if necessary):						
☐ I have attached a copy of my Pennsylvania State Police Criminal History which I have obtained within 60 days before filing this petition.						
☐ I have not attached a copy of my Pennsylvania State Police Criminal History. State reason(s) below:						

When this petition is filed with the Clerk of Courts, the petitioner shall serve a copy upon the attorney for the Commonwealth.

I, the undersigned petitioner, avers that the facts set forth in this petition are true and correct to the best of my personal knowledge or information and belief, and are made subject to the penalties of unsworn falsification to authorities under 18 Pa.C.S § 4904.

Signature of Petitioner

Date

CERTIFICATE OF SERVICE

Pennsylvania Rules of Criminal Procedure 576, 576.1 and 790

Petitioner: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Docket number: 0123-45-2026-CR-900123.00-AB-CDE/2201

DO NOT SIGN OR DATE UNTIL SERVICE HAS ACTUALLY OCCURRED.

I certify that, concurrently with filing, I served the petition and included documents on the attorney for the Commonwealth and the court administrator as stated below. Add a service sheet with the same details for every additional recipient.

Commonwealth attorney name:

.....

Commonwealth attorney service address:

.....

Commonwealth attorney telephone number:

.....

Court administrator name:

.....

Court administrator service address:

.....

Court administrator telephone number:

.....

Manner of service (identify each recipient if different):

.....

Date of service (identify each recipient if different):

.....

Signature of petitioner after service:

Date signed:

Printed name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III

Use only a permitted method. Email or fax needs the applicable authorization; follow Rule 576.1 for authorized electronic filing. Never invent service facts.

Commonwealth of Pennsylvania

v.

IN THE COURT OF COMMON PLEAS OF

COUNTY,
PENNSYLVANIA

CRIMINAL DIVISION

DOCKET NO: 0123-45-2026-CR-900123.00-AB-CDE/2201

ORDER

AND NOW, this ____ day of _____, 20____, after consideration of the
_____ presented by _____,
it is ORDERED that the Petition/Motion is _____.

☐ Except as provided by law, all criminal justice agencies upon which this order is served shall expunge and destroy the defendant's arrest record, including the criminal history record information, pertaining to the captioned proceedings.

☐ In accordance with Pa.R.Crim.P. 320, the criminal charges in the above-captioned case specified below are dismissed and the defendant's arrest records regarding these charges shall be expunged except as provided by law.

☐ Except as provided by law, all criminal justice agencies upon which this order is served shall expunge and destroy the official and unofficial arrest and other criminal records pertaining to the captioned proceedings in accordance with Section 119 of The Controlled Substance, Drug, Device and Cosmetic Act (35 P.S. § 780-119).

The information required under Pa.R.Crim.P. 790 appears on the attached page(s) which is hereby incorporated into this ORDER by reference.

BY THE COURT:

Pursuant to Pa.R.Crim.P. 790, the following information is provided:

1. Petitioner Name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III
2. Alias(es): _____
3. Petitioner's Address: _____
4. Petitioner's Date of Birth: 1991-04-17
5. Petitioner's Social Security Number: _____
6. Name and address of the judge of the Court of Common Pleas or Philadelphia Municipal Court who accepted the guilty plea or heard the case:
7. Name and mailing address of the affiant as shown on the complaint, if available:
8. Docket Number: 0123-45-2026-CR-900123.00-AB-CDE/2201
9. Offense Tracking Number (OTN): _____
10. The date on the complaint, or the date of arrest, and if available, the criminal justice agency that made the arrest:

Date on citation or complaint 2019-03-08; date of arrest 2019-03-08; arresting agency Example Police Department
11. The specific charges, as they appear on the charging document, to be expunged and applicable dispositions (attach additional sheets if needed):

Possession of a controlled substance with an unusually long statutory description
12. If the sentence includes a fine, costs, or restitution, whether the amount due has been paid: _____
13. The reason for expungement:
14. The criminal justice agencies upon which certified copies of the order shall be served: